

Samay Singh v. Uttar Pradesh Power Corporation Limited & 2 Others

Allahabad High Court · Division Bench · 8 April 2024 · 2024:AHC:60830-DB · Writ - C No. 6079 of 2024 · **Writ disposed of; petitioner to file a comprehensive representation within two weeks; respondents to decide it by a reasoned speaking order after hearing within three weeks; no coercive steps for six weeks or until that decision, whichever is earlier**

HEADNOTE

A writ seeking certiorari against a demand notice dated 11 January 2023, issued under Section 3 of the Recovery of Electricity Dues Act, 1958 on a provisional assessment, and attacking non-compliance with Clause 8.1(a)(v) and (vi) of the U.P. Electricity Supply Code, 2005 for want of service of the inspection report, is not decided on that service dispute. The parties being agreed that no final assessment order has been passed, compliance with Clause 8.1(a)(vi) is treated as primarily a question of fact. The petition is disposed of with a direction that the consumer file a comprehensive representation within two weeks, to be decided by a reasoned and speaking order after hearing all parties within three weeks, and that no coercive steps be taken for six weeks or until that decision, whichever is earlier. The notice is neither quashed nor upheld.

FACTUAL SUMMARY

Samay Singh petitioned Uttar Pradesh Power Corporation Limited and two others for certiorari to quash a demand notice dated 11 January 2023, said to have been issued by respondent no. 2 under Section 3 of the Recovery of Electricity Dues Act, 1958 (Act 16 of 1958). He contended that Clause 8.1(a)(v) of the U.P. Electricity Supply Code, 2005 had not been complied with, and that sub-clause (vi), requiring service of the inspection report on the consumer, had not been followed. The notice, he said, rested only on a provisional assessment.

The parties were agreed that no final assessment order had been passed. Respondent no. 2's counter-affidavit stated that a provisional assessment and notice dated 15 September 2022 was sent by registered post on 22 September 2022, that the petitioner filed no objection in time, and that the notice of 11 January 2023 followed. After interlocutory orders on 26 February, 7 March and 18 March 2024, the Division Bench heard the petition and disposed of it on 8 April 2024.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1(a)(vi)

Service of the inspection report is a factual dispute; with no final assessment passed, the writ is disposed by a time-bound representation, a speaking order, and a limited restraint on coercive steps

QUESTION

Will the writ court decide whether the inspection report was served under Clause 8.1(a)(vi), and quash a Section 3 recovery notice founded on a provisional assessment, when no final assessment order has been passed?

HOLDING

No. Whether Clause 8.1(a)(vi) of the U.P. Electricity Supply Code, 2005 has been complied with is primarily a factual dispute. The parties were agreed that no final assessment order had been passed. The petition was therefore disposed of by directing the petitioner to file a comprehensive representation within two weeks. If that representation is filed in time, the respondents are to decide it by a reasoned and speaking order after hearing all the parties within three weeks; respondent no. 2 may decide it in less than three weeks. For six weeks, or until the decision on the representation, whichever is earlier, no coercive steps are to be taken. The demand notice dated 11.01.2023 was neither quashed nor upheld. ¶ 6, 8-11

QUALIFIER

The restraint on coercive steps lasts six weeks or until the decision on the representation, whichever is earlier. It is not a stay until a final assessment is passed.

FLAG Petitioner invoked Clause 8.1(a)(v) and (vi) (para 5). The Court held only that compliance with (vi) is primarily a factual dispute; it did not construe either sub-clause or find non-service. The demand is described as issued under Section 3 of the Recovery of Electricity Dues Act, 1958 (prayer: Act 16 of 1958); that section is not construed. The PDF also contains orders of 26.2.2024 (Manoj Kumar Gupta and Kshitij Shailendra, JJ.: lay before another Bench after nomination), 7.3.2024 (counter within ten days) and 18.3.2024 (rejoinder within three days). The disposing order of 8.4.2024 is Neutral Citation No. 2024:AHC:60830-DB, paragraphs 1-11. No precedent is cited. Connection, premises, and whether the case was theft or unauthorised use are not stated.

PRINCIPLE TAGS

assessment-demand-notices-relegated-to-representation-without-merits The Court did not decide whether the inspection report was served under Clause 8.1(a)(vi), and did not quash or uphold the demand notice of 11.01.2023. Because no final assessment had been passed, and the service question was primarily factual, the writ was disposed of by a comprehensive representation. ¶ 8-10

representation-to-be-decided-in-accordance-with-law If the representation is filed within two weeks, the respondents are to decide it by a reasoned and speaking order after hearing all parties within three weeks. Respondent no. 2 may decide it sooner. No coercive steps for six weeks or until that decision, whichever is earlier. ¶ 9-11

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE INSPECTION REPORT WAS SERVED ON THE PETITIONER AS CLAUSE 8.1(A) (VI) REQUIRES, INCLUDING WHETHER REGISTERED POST OF THE PROVISIONAL ASSESSMENT AND NOTICE DATED 15.09.2022 ON 22.09.2022 WAS SUCH SERVICE

The Court treated compliance as primarily a factual dispute and left it to the representation. ¶ 5, 7-8

NOT DECIDED — WHETHER CLAUSE 8.1(A)(V) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 WAS COMPLIED WITH

Raised by the petitioner. The order does not address sub-clause (v) separately from (vi). ¶ 5

NOT DECIDED — WHETHER THE DEMAND NOTICE DATED 11.01.2023 UNDER SECTION 3 OF THE RECOVERY OF ELECTRICITY DUES ACT, 1958 IS LAWFUL, AND ANY ASSESSMENT QUANTUM

The notice was neither quashed nor upheld. ¶ 3-4, 9-11

NOT DECIDED — WHETHER THE UNDERLYING ASSESSMENT WAS FOR THEFT OF ELECTRICITY UNDER CLAUSE 8.1 OR FOR UNAUTHORISED USE

The petitioner invoked Clause 8.1. The order does not characterise the assessment. ¶ 5